

Baja Narahari vs The State Of Ap., on 22 September, 2022

Author: Shameem Akther

Bench: Shameem Akther

THE HON'BLE Dr. JUSTICE SHAMEEM AKTHER
AND
THE HON'BLE SRI JUSTICE E.V.VENUGOPAL

CRIMINAL APPEAL No.737 of 2013

JUDGMENT :

(Per Hon'ble Dr. Justice Shameem Akther) This Criminal Appeal, under Section 374(2) of the Code of Criminal Procedure, 1973 (for short, 'Cr.P.C'), is filed by the appellant/accused, aggrieved by the judgment, dated 14.08.2013, passed in S.C.No.558 of 2012 by the III Additional Sessions Judge (Fast Track Court) at Medak, whereby, the Court below convicted the appellant/accused of the offence under Section 302 of IPC and sentenced him to undergo imprisonment for life and to pay fine of Rs.5,000/-.

2. We have heard the submissions of Smt. G.Jaya Reddy, learned counsel for the appellant/accused, Sri C.Pratap Reddy, learned Public Prosecutor appearing for the respondent/State and perused the record.

3. The case of the prosecution, in brief, is as follows:

On 28.05.2012, PW.1-Baja Babu, went to Medak Rural Police Station and lodged Ex.P1 complaint stating that he was doing scrap business. In front of his house, his elder brother-Baja Rajalingam (the deceased) was residing along with his wife (PW.2) and children.

2 Dr.SA, J & EVV, J The deceased has got three children. The deceased used to consume liquor and beat his wife and children. On many occasions, PW.1 advised the deceased to quit drinking and not to beat his wife and children. But the deceased did not stop drinking and beating. On 26.05.2012, the deceased and PW.2 went to Shamnapur village in an auto, on business purpose. As the auto went off road in the evening, the deceased left the place leaving the auto and his wife (PW.2) on the road. On the same day at about 11:00 PM, after the auto was repaired, they returned home. After returning home, the elder son of the deceased-Baja Narahari (appellant/accused) picked up quarrel with the deceased for leaving the auto and his mother (PW.2) on the road. During the last night also, the appellant/accused quarreled with the deceased on the same issue, whereupon, PW.1 intervened and convinced the appellant/accused and the deceased and went to his house and slept. Around 03:30 hours in the night, when PW.1 was sleeping in his house, he heard

some axing sound. He came out and found the deceased with bleeding head injury and the appellant/accused with an axe in his hand. On enquiry, the appellant/accused told that he killed the deceased by axing him down. Later, the appellant/accused cleaned the axe, kept it in front of the house and escaped and prayed to take necessary action against the appellant/accused.

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4. Basing on the report lodged by PW.1, PW.10-SI of Police, Medak Rural Police Station, registered a case in Crime No.74 of 2012 of the offence under Sections 302 of IPC, issued Ex.P9-FIR, recorded the statement of PW.1 and handed over the CD file to PW.11-CI of Police for further investigation. PW.11 took up further investigation, visited the scene of offence, seized MOs.1 and 2 and conducted Scene of Offence and Seizure Panchanama under Ex.P7 in the presence of PW.9 and LW.10, recorded the statements of PWs.2 to 8, got photographed the dead body of the deceased and the scene of offence, held inquest over the dead body of the deceased under Ex.P8, got the appellant/accused arrested and sent him to judicial custody, sent the seized material objects to FSL for analysis and on completion of investigation, laid charge-sheet before learned Judicial Magistrate of First Class at Medak, against the appellant/accused of the offence under Section 302 of IPC.

5. Learned Magistrate had taken cognizance against the appellant/accused of the offence under Section 302 of IPC, registered the same as P.R.C.No.49 of 2012 and committed the same to the Court of Session, Medak, under Section 209 of Cr.P.C., since the offence under Section 302 of IPC is exclusively triable by the Court of Session. On committal, the Court of Session numbered the case as

4 Dr.SA, J & EVV, J S.C.No.558 of 2012 and made over to the Court below for disposal, in accordance with law.

6. On appearance of the appellant/accused, the Court below framed charge against him of the offence under Section 302 of IPC, read over and explained to him, for which, the appellant/accused pleaded not guilty and claimed to be tried.

7. To prove the guilt of the appellant/accused, the prosecution examined PWs.1 to 12 and got marked Exs.P1 to P11, besides case properties, MOs.1 and 2.

8. PW.1-Baja Babu is the de-facto complainant. PW.2-Baja Sathyamma the wife of the deceased and the mother of the appellant/accused. PW.3-Baja Swapna is the daughter of the deceased and sister of the appellant/accused. PW.4-B.Malamma is the wife of PW.1. PW.5-D.Egonda, PW.6-D.Venkatesham and PW.7- K.Yellamma are cited as witnesses to the subject incident. PW.8-M.Nagaraj is the photographer who took photographs of the dead body of the deceased. PW.9-Manne Kishan is a panch witness for Ex.P7-scene of offence and seizure panchanama and Ex.P8-Inquest panchanama. PW.10-M.Venu Kumar is the SI of police who registered Ex.P1

complaint and issued Ex.P9-FIR. PW.11-K.Rama Krishna is the CI of police and investigation officer. PW.12-Dr.Vijay 5 Dr.SA, J & EVV, J Kumar is the doctor, who deposed on behalf of Dr.Amar Singh, who conducted autopsy over the dead body of the deceased and issued Ex.P11-PME report. Ex.P1 is the report. Exs.P2 to P6 are the statements of PW.2, 3, 5, 6 and 7 respectively, recorded under Section 161 of Cr.P.C. Ex.P7 is the Scene of Offence and Seizure Panchanama. Ex.P8 is the Inquest Panchanama. Ex.P9 is the FIR. Ex.P10 is the FSL report, dated 14.08.2012. Ex.P11 is the PME Report of the deceased. MO.1 is the Axe and MO.2 is the bloodstained towel.

9. When the appellant/accused was confronted with the incriminating material appearing against him and was examined under Section 313 of Cr.P.C., he denied the same and claimed to be tried. No evidence, either oral or documentary, was adduced on behalf of the appellant/accused.

10. The trial Court, having considered the submissions made and the evidence available on record, vide the impugned judgment, dated 14.08.2013, convicted the appellant/accused of the offence under Section 302 of IPC and sentenced him as stated supra. Aggrieved by the same, the appellant/accused preferred this appeal.

11. Learned counsel for the appellant/accused would submit that the appellant/accused is the son of the deceased. There were land 6 Dr.SA, J & EVV, J disputes between the deceased and PW.1 and his wife (PW.4), who are the brother and sister-in-law of the deceased respectively. Further, though the subject death was caused on 26.05.2012, the report was lodged with the police on 28.05.2012. There is no explanation for the delay of two days in lodging the report with the police. As there was animosity and land disputes in between the deceased and PW.1 and his wife, the appellant/accused was falsely implicated in the subject crime. The appellant/accused was 18 years old as on the date of the subject incident and was studying intermediate. Further, PWs.2 and 3, who are wife and daughter of the deceased, turned hostile and did not support of the case of prosecution. Further PWs.5 and 6, who are neighbours of the deceased and cited as eye-witnesses also turned hostile and did not support the case of prosecution. PWs.1 and 4 are interested witnesses and as such, their evidence do not have any credibility and cannot be acted upon. Moreover, MO.1-axe, which was seized from the scene of offence, does not connect the appellant/accused with the commission of offence. There is no cogent and convincing evidence to convict the appellant/accused of the offence under Section 302 of IPC. The prosecution failed to prove the guilt of the appellant/accused beyond all reasonable doubt of the offence under Section 302 of IPC and ultimately prayed to allow the appeal by setting aside the conviction and sentence recorded against the 7 Dr.SA, J & EVV, J appellant/accused and acquit him of the said offence. Learned counsel for the appellant/accused alternatively contended that as there was no intention or premeditation on the part of the appellant/accused to cause the subject death of the deceased, the subject offence would, at the most, fall under Section 304 Part-I of IPC. In support of her contentions, the learned counsel had had relied on the following decisions.

1. State of Andhra Pradesh Vs. M.Madhusudhan Rao¹

2. Anil, S/o. Shamrao Sute and another Vs. State of Maharashtra²

3. Pyare Singh Vs. State of Madhya Pradesh³

12. Per contra, the learned Public Prosecutor would submit that there is clear evidence of PWs.1 and 4 which directly connects the appellant/accused with the subject death of the deceased. Further, PWs.4 and 5 are the natural witnesses. Their houses were situated by the side of the house of the deceased and the appellant/accused. Both of them categorically deposed that on the date of incident, on hearing the sound/cries, they came out from their house and found the dead body of the deceased. The evidence of PWs.1 and 4 is cogent, consistent and inspires confidence to act upon. After commission of the subject offence, the appellant/accused cleaned MO.1-axe, kept it at the scene of offence and fled away, which was recovered by PW.11-investigation officer, under a cover of (2008) 15 SCC 582 (2013) 12 SCC 441 8 Dr.SA, J & EVV, J panchanama. The reason for causing the subject death of the deceased by the appellant/accused is that the deceased used drink and beat his family members, particularly his wife (PW.2). Ante- mortem injuries were found on the dead body of the deceased and the subject death was homicidal. There is medical evidence and other oral and documentary evidence on record to substantiate that the appellant/accused had caused the subject death. The appellant/accused was arrested on 29.05.2012 and he confessed the commission of the subject offence. The oral and documentary evidence on record unerringly points towards the appellant/accused that he is the person who caused the subject death of the deceased. The prosecution proved the guilt of the appellant/accused beyond all reasonable doubt of the offence under Section 302 of IPC. The Court below is justified in convicting and sentencing the appellant/accused of the said offence and ultimately prayed to dismiss the appeal by confirming the conviction and sentence recorded against the appellant/accused vide the impugned judgment. In support of his contentions, the learned Public Prosecutor had relied on a decision of the Hon'ble Apex Court in Dauvaram Nirmalkar Vs. State of Chattisgarh⁴.

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13. In view of the above submissions made by both sides, the points that arise for determination in this appeal are as follows:

- 1) Whether the death of the deceased-Baja Rajalinam is homicidal?
- 2) Whether the appellant/accused had caused the subject death of the deceased?
- 3) Whether the conviction and sentence recorded against the appellant/accused of the offence punishable under Section 302 of IPC is liable to be set aside?
- 4) Whether the offence committed by the appellant/accused falls in any of the exceptions given under Section 300 of IPC?
- 5) To what result?

POINTS: -

14. The deceased was the father of the appellant/accused and PWs.1 to 3 are the brother, wife and daughter of the deceased respectively. It is the case of the prosecution that the deceased was addicted to alcohol and used to beat his wife and children. On 26.05.2012, the deceased and his wife went to Sharnapur in an auto on business purpose and while there were returning, the auto gave trouble due to some mechanical defect. On that, the deceased left the auto and his wife on the road and went away. The wife of the deceased got the auto repaired and returned to home at about 11:00 PM. On 27.05.2012, the appellant/accused picked up quarrel with the deceased on the said issue, whereupon, PW.1 intervened to Dr.SA, J & EVV, J and pacified matter. At about 03:30 hours on 28.05.2012, the appellant/accused picked up an axe from their house, came out and gave deadly blows with the said axe on the head of the deceased, who was in deep sleep, due to which, the deceased died on the spot.

15. PW.12 is the doctor, who deposed on behalf of Dr.Amar Singh, who conducted autopsy over the dead body of the deceased. He deposed that he knows Dr.Amar Singh, who worked along with him at Government Hospital, Medak, and as such, he can identify Dr.Amar Singh's handwriting and signature. Dr.Amar Singh left the job and he does not know his whereabouts. Dr.Amar Singh conducted autopsy over the dead body of the deceased on the requisition of CI of Police, Medak, on 28.05.2012 from 03:00 PM to 04:00 PM and found the following injuries on the dead body of the deceased:

1. 6" x 2" x 1" incised wound extending from the right eye orbit to right frontal region of skull obliquely present and right eye ball protruded.
2. 4" x 2" x 1" incised wound extending from right ear to right temporal and right frontal region of exact and cut injury of right ear obliquely.
3. 2" x 2" x 1/2" incised wound on right cheek.
4. 1" x 1/4" incised wound over right temporal region of scalp.
5. Multiple fracture of right and left frontal bone and right temporal bone and right parietal bone and brain protruded from the fracture of the skull, injuries are ante-mortem in nature.

PW.12 further deposed that the above injuries are ante-mortem in nature. The approximate time of death is 12 to 14 hours prior to 11 Dr.SA, J & EVV, J PME. The cause of the death is 'due to head injury'. Further, PW.12 categorically deposed that the signatures and handwriting on Ex.P11- PME report belongs to Dr.Amar Singh. The evidence of PW.12-doctor is not disputed. The injuries mentioned in Ex.P8-Inquest Panchanama and the injuries mentioned in Ex.P11-PME report correlate with each other. There is corroboration and consistency in the evidence of PW.12-doctor and Ex.P11-PME Report. Looking at the length and width of the injuries found on the dead body of the deceased, it can be safely concluded that the said injuries are possible with MO.1-axe. The

evidence of PWs.1, 4 and 12 coupled with Ex.P11-PME Report prove that the death of the deceased-Baja Rajalingam is homicidal. Further, there is no much dispute that the subject death is homicidal.

16. Now the point that requires answer is as to whether the appellant/accused caused the subject death of the deceased. To answer this question, it is necessary to analyze the evidence on record.

17. PW.1 is the younger brother of the deceased. He deposed in his evidence that his brother died one year back. One day before the incident, the deceased and his wife went in their auto for scrap business. On the way, the auto gave mechanical problem, as such the deceased left the auto and his wife and went to bring mechanic 12 Dr.SA, J & EVV, J and afterwards, they came back to the house and quarreled. He further deposed that when the accused and deceased quarreled, he interfered and convinced them. After that they had dinner and slept. In the morning, he heard the sound of cutting with axe and then he came out from the house and saw the deceased with injuries and accused with an axe in his hand. When he asked the appellant/accused as to why he killed the deceased, the appellant/accused said that he killed the deceased by keeping all the previous incidents in mind. After that, the appellant/accused again gave two axe blows and killed the deceased. Then, he took the appellant/accused to the police station and lodged Ex.P1-complaint. He also identified MO.1 as the axe used by the appellant/accused in the commission of subject offence. PW.1 was cross-examined, wherein, he denied the suggestion that he has land disputes and business disputes with the deceased and that the appellant/accused is not responsible for the death of the deceased.

18. PW.2 is the wife of the deceased. She deposed that the appellant/accused is her son and deceased was her husband, but she does not know who killed the deceased and that she did not see the dead body and that there are no disputes between her and her husband.

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19. PW.3 is the daughter of the deceased. She stated in her evidence that his father died one year back, but she did not know who killed him and on the date of incident, she was sleeping in her house and on the next day morning, she saw the dead body of her father.

20. PW.4 is the wife of PW.1. She deposed in her evidence that about one year back, the deceased and his wife (PW.2) went in their auto for scrap business and on the way, the said auto gave mechanical problem. Then the deceased left the auto and PW.2 there itself and went to bring mechanic. After repair of the auto, both came back to the house and in the night, they started quarrelling. Then, she and PW.1 admonished them and went to sleep in their house. In the early morning, they woke up to the sound and saw the dead body of the deceased with injuries on his head. While they were talking, in the meantime, the appellant/ accused came out and beat the deceased with axe. PW.4 was cross- examined, wherein, she stated that PW.1 and the deceased were having land disputes. However, she denied the suggestion that PW.1 filed false case due to disputes and she is deposing false at the instance of the police and the appellant/accused is not responsible for the death of the deceased.

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21. PW.5 stated in his evidence that on the date of incident, he was sleeping in his house and on hearing the crises, they came out and saw dead body and he came to know that the appellant/accused killed the deceased.

22. PW.6 also deposed on similar lines as that of PW.5. PW-7 did not support the prosecution on any fact.

23. PW.8 is the photographer who spoke about taking photographs of the dead body of the deceased and handing over to the police after developing the CD.

24. PW.9 is a panch witness to Scene of offence and Seizure Panchanama under Ex.P7 and Inquest Panchanama under Ex.P8. He deposed that in his presence, the police prepared rough sketch of the scene of offence, seized MO.1-axe and MO.2-bloodstained towel and conducted Inquest Panchanama.

25. PW.10 is the SI of police. He deposed that on 28.05.2012, PW.1 came to the police station and lodged complaint report under Ex.P1. Basing on the said report, he registered a case in Crime No.74 of 2012 under Section 302 of IPC and issued Express FIR under Ex.P9. He recorded the statement of PW.1 and handed over the CD file to PW.11-CI of Police.

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26. PW.11 is the CI of police and investigation officer. He deposed that after receipt of CD file from PW.10, he visited the scene of offence and conducted panchanama under Ex.P7 in the presence of PW.9 and LW.10, seized MOs.1 and 2, recorded the statements of PWs.2 to 8, got the dead body of the deceased and the scene of offence photographed, held inquest over the dead body of the deceased under Ex.P8, got the appellant/accused arrested and sent him to judicial custody, sent the seized material objects to FSL for analysis and on completion of investigation, laid charge-sheet before learned Judicial Magistrate of First Class at Medak against the appellant/accused of the offence punishable under Section 302 of IPC. He also deposed that when the appellant/accused was produced before him, the appellant/accused confessed about the commission of the subject offence.

27. It is the consistent evidence of PW.1 that one day before the subject death, a quarrel took place between the appellant/accused and the deceased for the reason that the deceased left his wife (PW.2) and the auto on the road, which gave trouble while they were traveling for scrap business. Then, PW.1 intervened, convinced them and went to his house, had dinner and slept. In the morning, he heard sound of cutting with an axe and came out from his house and saw the deceased with injuries and the appellant/accused with an axe in his hand. It is also his evidence that when he asked the appellant/accused as to why he killed the deceased, the appellant/accused replied that by keeping all the previous incidents in mind, he killed the deceased and saying so, the appellant/accused again gave two axe blows and killed the deceased. PW.1 denied the suggestion put to him in his cross-examination that there were land disputes between him and

the deceased and that the appellant/accused is not responsible for the death of the deceased. PW.4 is the wife of PW.1. Her evidence corroborates the evidence of PW.1 on all material aspects. Further, though PW.4 stated in her cross-examination that PW.1 and the deceased were having land disputes, she denied a suggestion that PW.1 filed a false case due to disputes and that the appellant/accused is not responsible for the death of the deceased. Further, the scene of offence and recovery panchanama under Ex.P7 demonstrates the presence of the dead body of the deceased at the scene of offence, which is quite in front of the house of PWs.1 and 4. Further, there is evidence of PW.9 that the police seized MO.1-axe and MO.2-bloodstained towel from the scene of offence, in his presence. MOs.1 and 2 were sent to Forensic Science Laboratory for examination and report. Ex.P10 is the FSL Report, dated 14.08.2012, wherein, it was mentioned that human blood was detected on Item Nos.1 to 3, i.e., MO.1-axe, MO.2- bloodstained towel and MO.3-bloodstained earth and the blood group 17 Dr.SA, J & EVV, J on the said Item Nos.1 and 2 is "O" blood group. The evidence of PW.1 and PW.4 is cogent, consistent and inspires confidence to act upon. There are no omissions and contradictions in their evidence.

28. Learned counsel for the appellant/accused contended that PWs.1 and 4, being the relatives of the appellant/accused, are interested witnesses and as such, their evidence cannot have any credibility. The mere fact that PWs.1 and 4 are relatives of the appellant/accused would not, by itself, sufficient to discard their testimony straightaway, unless it is proved that their evidence suffers from serious infirmities, which raises a reasonable doubt in the mind of the Court. It is settled law that the evidence of interested witnesses cannot be discarded on the sole ground of interestedness, but their evidence should be subjected to a close scrutiny. Interested witnesses are not necessarily false witnesses and their evidence cannot be equated with that of a tainted witness. In the instant case, though PWs.1 and 4 are the real brother and sister-in-law of the deceased, their evidence is cogent, consistent and inspires confidence to act upon and do not suffer from material omissions and contradictions. Both these witnesses consistently deposed that they saw the appellant/accused giving blows to the deceased with an axe. Further, PWs.5 and 6, though did not fully support the case of prosecution, stated in their evidence that while 18 Dr.SA, J & EVV, J there were sleeping in their house, on hearing cries, they came out and saw the dead body of the deceased, which establishes that the deceased made hue and cries. This part of the evidence of PWs.5 and 6 corroborates the evidence of PWs.1 and 4. Further, it is quite natural that when a person is beaten with a weapon like axe, he would raise hue and cries and on hearing such hue and cries, the neighbours would come out. In the instant case, the conduct of PWs.1 and 4 to 6 in reaching the scene of incidence on hearing the hue and cries raised by the deceased is not artificial or unnatural.

29. Learned counsel for the appellant/accused, placing reliance on M.Madhusudhan Rao's case (1 supra), contended that though the subject death was caused on 26.05.2012, the report was lodged with the police on 28.05.2012 and that there was no explanation for the delay of two days in lodging the report with the police. Here, it is apt to state that when a person in a family is killed by somebody, the persons who would immediately react and lodge a report with the police would be his family members, i.e., wife, son, daughter etc. In the instant case, the deceased was none other than the father of the appellant/accused and appellant/accused is none other than the eldest son of PW.2 and brother of PW.3. So, naturally PWs.2 and 3 were reluctant in lodging report against the appellant/accused immediately after the subject incident. The subject report was 19 Dr.SA, J & EVV,

J lodged by PW.1, who is the brother of the deceased, i.e., paternal uncle of the appellant/accused, on the same day of the incident, i.e., on 28.05.2012, with a gap of six hours. Under the said circumstances, there is no delay in lodging Ex.P1 report. In M.Madhusudhan Rao's case (1 supra), the accused therein were tried for the offences under Sections 498A and 307 read with 34 of IPC. They were alleged to have forced the complainant therein to consume poison, as a result which, she was admitted in hospital in unconscious state on 19.04.1996. FIR in that regard was lodged on 22.05.1996. After discharge from hospital, the complainant went to her parent's house and resided therein and she stated that since no one from the family of the accused came to enquire about her welfare, she decided to lodge the FIR. Under those circumstances, the Hon'ble Apex Court held that such circumstances raise considerable doubt regarding the genuineness of the complainant and the veracity of her evidence, rendering it unsafe to base conviction. The facts of the cited decision are quite different from the facts of the case on hand and thus, the cited decision is not helpful to the appellant/accused.

30. Learned counsel for the appellant/accused contended that as there was animosity and land disputes in between the deceased and PW.1, the appellant/accused was falsely implicated in the subject 20 Dr.SA, J & EVV, J crime. It is true that PW.4 stated in her evidence that her husband (PW.1) and the deceased were having land disputes. However, that mere statement of PW.4 cannot be taken as a ground to hold that PW.1 had falsely implicated the appellant/accused in the subject crime. The deceased was having another son (PW.3) and a daughter (PW.2) apart from the appellant/accused. There was no reason for PW.1 to lodge the subject report with the police against the appellant/accused alone in the subject crime excluding PW.3-another son of the deceased and PW.2-daughter of the deceased, but for the appellant/accused causing death of the deceased with MO.1-axe.

31. There is direct evidence of PWs.1 and 4 to prove that the appellant/accused has caused injuries with MO.1-axe to the deceased around 03:30 hours on 28.05.2012, in the open place adjoining to his house, which is quite in front of the house of PWs.1 and 4. To substantiate that the place of death is an open place adjoining the house of the deceased, there is Ex.P7-Scene of offence and Seizure Panchanama and Ex.P8-Inquest Panchanama coupled with the evidence of PW.9-panch witness and PW.11-investigating officer. The name of the appellant/accused finds place in Ex.P1-report. Specific overt acts have been attributed to him. There is no reason, animosity or grudge to PWs.1 and 4 to falsely implicate the appellant/accused in the subject crime. PWs.1 and 4 and the other 21 Dr.SA, J & EVV, J panch witnesses are trustworthy witnesses. Further, leaving MO.1- axe at the scene of offence was witnesses by PWs.1 and 4 and the same was seized by PW.11-investigating officer during the panchanama, in the presence of PW.9-panch witness. It is also a piece of incriminating circumstance against the appellant/accused. Moreover, as per Ex.P10-FSL Report, dated 14.08.2012, human blood was detected on Item Nos.1 to 3, i.e., MO.1-axe, MO.2- bloodstained towel and MO.3-bloodstained earth and the blood group on the said Item Nos.1 and 2 is "O" blood group. Therefore, there is ample evidence on record to prove beyond all reasonable doubt that the appellant/accused had caused the subject death of his father, i.e., the deceased herein.

32. Learned counsel for the appellant/accused alternatively contended that as there was no intention and premeditation on the part of the appellant/accused to cause the subject death of the

deceased, the subject offence would, at the most, fall under Section 304 Part-I of IPC.

33. To appreciate the said contention of the learned counsel for the appellant/accused, the legal position with regard to Sections 299, 300, 302 and 304 of IPC is required to be referred to. Section 299 of IPC defines culpable homicide as the act of causing death - (i) with the intention of causing death; or (ii) with the intention of causing 22 Dr.SA, J & EVV, J such bodily injury as is likely to cause death; or (iii) with the knowledge that such act is likely to cause death. The first and second clauses of Section 299 of IPC refer to 'intention' apart from 'knowledge' and the third clause refers to 'knowledge' apart from 'intention'. The word 'homicide' has been derived from Latin terms homo (man) and cido (cut). Homicide is the killing of a human being by a human being. Whenever a Court is confronted with the question whether the offence is 'murder' or 'culpable homicide not amounting to murder' on the facts of a case, it will be convenient for it to approach the problems in three stages. The question to be considered at the first stage would be whether the accused has done an act by doing which, he has caused the death of another. Proof of such casual connection between the act of the accused and the death, lends to the second stage for considering whether the act of the accused amounts to 'culpable homicide' as defined in Section 299 of IPC. If the answer to this question is prima facie found in the affirmative, the stage for considering the operation of Section of 300 of IPC would be reached. This is the stage at which the Court should determine as to whether the facts proved by the prosecution bring the case within the ambit of any of the four clauses of the definition of 'murder' contained in Section 300 of IPC. If the answer to this question is in the negative, the offence would be 'culpable 23 Dr.SA, J & EVV, J homicide not amounting to murder', punishable under the first or the second part of Section 304 of IPC.

34. Keeping the above legal position in mind, if we look at the facts of the case on hand, the deceased is none other than the father of the appellant/accused. It is borne by record that the deceased was addicted to alcohol and used to consume liquor on regular basis and beat his wife and children. In Ex.P1 report also, it is categorically mentioned that PW.1 advised the deceased to quit drinking and not to beat his wife and children, but however, the deceased did not quit drinking and beating. In the night hours of 26.05.2012, a quarrel took place between the deceased and the appellant/accused with regard to the deceased leaving his wife (PW.2) and the auto, which gave mechanical trouble, on the road. On the next day, i.e., on 27.05.2012 also, the deceased and the appellant/accused quarreled with each other and in the early hours of 28.05.2012 (03:30 AM), the deceased was axed to death by the appellant/accused. Except PW.1 and PW.4, none of the prosecution witnesses supported the case of prosecution. It is culled out from the material placed on record that the appellant/accused caused the death of the deceased, but however, he was not having pre-meditated mind to do away with the life of the deceased. There is no evidence at all as to what transpired in between the deceased and the appellant/accused on 24 Dr.SA, J & EVV, J that fateful night, before the commencement of the subject incident. PWs.1 and 4, who are relatives and neighbours, heard the sounds and reached the scene of offence. They also saw the appellant/accused axing the deceased. There is no iota of evidence on record as to what made the appellant/accused to inflict deadly blows on the deceased with MO.1 axe. As per the material placed on record, the deceased was a habitual drunkard and was ill-treating his family members under intoxication. He did not mend his attitude in spite of advices by others. The appellant/accused was aged about 18 years studying intermediate, as on the date of commission of the subject offence. Any grown up son would not keep

quiet when his father harasses/ill-treats his family members under intoxication, repeatedly and persistently, which, in the instant case, appears to be the motivating factor which persuaded the appellant/accused to do away with the life of the deceased. Excluding this circumstances, we do not see any reason for the appellant/accused causing the death of the deceased, who happens to be his father. The wife and the other children of the deceased did not come forward to state anything against the appellant/accused. Moreover, there is nothing on record to hold that the appellant/accused is a person of bad conduct and character. The circumstances placed on record establish that the chronic alcoholic behavior of the deceased with his family members led to his death at the hands of the appellant/accused. Hence, the 25 Dr.SA, J & EVV, J deceased had also contributed to the situation wherein, he lost his life. So, the subject death of the deceased was the cumulative effect of the circumstances indicated above. Had the deceased not ill- treated his family members under intoxication, the subject death would not have been caused. The circumstances on record clinchingly establish that there was no motive or mens rea as well as pre-meditation on the part of the appellant/accused. The cumulative conduct of the deceased had given grave provocation and frustration to the appellant/accused who lost self-control and intentionally caused such bodily injuries, which were likely to cause the subject death. So, in our considered opinion, the offence committed would not fall under Section 302 of IPC, but would fall under Section 304 Part-I of IPC. Hence, we deem it appropriate to convict and sentence the appellant/accused under Section 304 Part-I of IPC, instead of Section 302 of IPC.

35. Accordingly, the conviction and sentence imposed against the appellant/accused by the Court below vide impugned judgment, dated 14.08.2013, for the offence under Section 302 of IPC is set aside. In view of the evidence on record, the appellant/accused is convicted of the offence under Section 304 Part-I of IPC and is sentenced to undergo rigorous imprisonment for a period of ten years and pay fine of Rs.5,000/-, in default, to undergo simple 26 Dr.SA, J & EVV, J imprisonment for six months, for the offence under Section 304 Part- I of IPC.

36. Accordingly, the Criminal Appeal is partly allowed.

Miscellaneous petitions, if any, pending in this appeal, shall stand closed.

_____ Dr. SHAMEEM AKTHER, J _____
E.V.VENUGOPAL, J 22nd September, 2022 Bvv